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Chicana Educators Are Being Sued for Including Arab and Palestinian Lessons In Their Ethnic Studies Curriculum

December 12, 2023 | L.A. TACO (CA)
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OpenURL Link

In recent years, we've witnessed parents and community members protest on school grounds against LGBTQ book readings, Black Lives Matter, and history lessons on U.S. Slavery.

Another topic that sparked heated debates at school meetings and between politicians across the country is the inclusion of Ethnic Studies in school curricula.

Those in favor of providing a deeper understanding of society, different cultures, backgrounds, struggles, and social movements argue that Ethnic Studies is essential for young people to learn to develop an understanding of the world around them. Meanwhile, others are troubled about the likelihood of biases and ideological perspectives being inserted into these courses.

While these different political struggles take place, some educators do find themselves entangled in legal battles as they face life-changing lawsuits over their role in writing and teaching ethnic studies, specifically lessons that include Arab and Palestinian Studies—in which people are calling them "anti-Semitic" and "anti-Jewish."

Guadalupe Carrasco Cardona, who has been teaching for 24 years and is the current Magnet Coordinator at Roybal Film and Television Magnet, said she was improperly served by a group labeled "Concerned Jewish Parents and Teachers of Los Angeles, John and Jane Does 1-5," in June of 2022.

"They left the papers on my porch," said Guadalupe to L.A. TACO in a series of interviews.

She was not alone. In the same month, Theresa Montaño, a Chicana educator, was served by the same group of "Concerned Jewish Parents and Teachers of Los Angeles."

"They left Theresa's papers in the office of Chicana/o Studies at Cal State Northridge (CSUN) while she was still working from home due to the pandemic," said Guadalupe about Theresa's experience with being served.

Ethnic Studies Under Attack

Aligned with nationwide patterns, the hunger for taking Ethnic Studies courses has surged in California. The number of students enrolled in such courses in California boomed from 8,700 in 2014-2015 to more than 15,000 by 2018, according to Education Week—a leading source of news, information, and analysis on K-12 education.

Over an extended period of time, Guadalupe, Theresa, and other scholars persevered in their efforts, working tirelessly with grassroots-level legislators to achieve the passage of Assembly Bill 2016. The bill states it "requires the adopted course of study for grades 7 to 12, inclusive, to include, among other subjects, the social sciences."

It is the model curriculum for Ethnic Studies.

Shortly after it passed, Assembly Bill 101 would also pass in 2021, establishing a graduation requirement to complete "3 years of courses in English and three years of courses in social studies, including one-year courses in United States history and geography and world history, culture, and a one-semester course in American government and civics, and a one-semester course in economics," according to the bill.

The bill could require all public and charter schools in California to offer ethnic studies for their students if they do

not already have one by the 2025-26 academic year. It also makes it a requirement for graduation by 2030.

In May 2019, a committee of 18 professors and educators appointed by the board crafted the initial draft and formally presented it to the Instructional Quality Commission.

"We traveled to Sacramento a lot to work on the curriculum," said Guadalupe. This commission serves as the advisory body to the state board, offering insights on standards and curriculum frameworks.

Originally, the plan was to gather feedback on the preliminary curriculum and later submit it for revision to the instructional quality panel and state board. The draft quickly prompted discussions and rattled some feathers because of the lessons and material in the curriculum.

The curriculum is over 500 pages and includes lessons on historic social movements.

One of the lessons being questioned by Democratic Party Senator Ben Allen from Santa Monica is "Intro to Ethnic Studies Lesson on Social Movements." The lesson allows students to research what a social movement is, its history, and how social movements shape world history.

It allows students to present their findings to the class. Some examples given to students of social movements are the United Farm Workers Movement, Black Lives Matter, and BDS (Boycott, Divestment, and Sanctions).

"This lesson (that included BDS) freaked Ben Allen out," said Guadalupe.

Shortly after Allen discovered the curriculum, Guadalupe and Theresa started receiving phone calls from reporters for public comment on the case of the "Concerned Jewish Parents and Teachers of Los Angeles."

Much to Guadalupe's surprise, she discovered that the media had been tipped about their Ethnic Studies curriculum being labeled as "anti-Semitic," leading to the publication of numerous articles on the subject,creating the preception already that they are "anti-Semitic" or "anti-Jewish."

"Before we can say anything, the narrative against us was already published," said Guadalupe. "The Zionists were already controlling the narrative."

The curriculum that Guadalupe, Theresa, and others had tirelessly worked on received massive criticism from government officials. California Governor Newsom later declared that the draft "will never see the light of day."

As a result, they blocked the curriculum from being sent to the education department.

"They got West Ed to come in and work on a new version of the curriculum," Guadalupe shared. "They had no people of color, no ethnic studies experts, or scholars, or ethnic people to work on the new version of the curriculum."

"The revised curriculum left out teachings on BDS, Palestine, and Arab studies," Guadalupe said.

Senator Ben Allen and Assemblymember Jesse Gabriel, who are the chair and vice chair of the California Legislative Jewish Caucus, released a statement about the new curriculum:

"The initial draft of the Ethnic Studies Model Curriculum, which was released in 2019, included highly problematic content about Jews and Israelis." The new curriculum now includes "Guardrails."

Although Theresa and Guadalupe face legal battles that can change their livelihood over their contributions to the original curriculum, their names were not removed. This created the perception that they had been involved in its development and approved of the new version with "Guardrails."

Guadalupe and the other writers wrote a letter to them about removing their names from this new version.

"We did not write this curriculum," she said. "We do not support this curriculum. This curriculum is watering down what Ethnic Studies is; it is not true to Ethnic Studies and is more of multicultural studies. They removed Arab and Palestine studies," she added.

In 2020, Theresa and Guadalupe convened in Alhambra to discuss the fate of the curriculum they had devoted so much time carefully developing that the state would no longer use.

At the meeting, they decided to create and share their own curriculum and make it available to the public. They launched the "Liberated Ethnic Studies Model Curriculum Consortium," an ethnic studies consultant group.

The American Zionist Movement vs. Chicana Educators

The legal actions confronting Guadalupe and Theresa involve "Concerned Jewish Parents and Teachers of Los Angeles, John Doe, and Jane Doe." They are represented by Lori Lowenthal Marcus, Jerome M. Marcus, and The Deborah Project.

Lori Lowenthal is the secretary of the "American Zionist Movement." On their website, under "about" or "mission" and "Constitution," you cannot find the words "Palestine" or "occupation."

Jerome M. Marcus also represented former President Donald Trump in the past. In addition, Jerome is a frequent contributor to the online publication "Jewish News Syndicate," where he recently published "'The Humanitarian Situation in Gaza' is code for killing Jews."

Harvard Law School professor Jesse Fried co-founded the Deborah Project. According to their website, they aim to "use legal skills and tools to uncover, publicize, and dismantle antisemitic abuses in educational systems, with the aim of bringing wrongdoers to justice and deterring future abuses."

The Deborah Project website also lists their petition against Hayward Unified School District, claiming they are teaching "antisemitism" in some form. In their court document, they also call out the "Liberated Ethnic Studies Model Curriculum Consortium" for "teaching of a uniquely antisemitic view," the document states.

They also have a legal petition against Mountain View Los Altos Union High School District, which is claiming they are teaching "antisemitism" in some form, in partnership with "Acosta Educational Partnership", founded by Dr. Curtis Acosta, a Distinguished Alumnus of Willamette University in Salem, Oregon.

"We are lucky that we found an attorney that is doing this pro bono, attorney Mark Kleiman," Guadalupe said. As public school educators, it can cost a lot to go against an organization receiving hundreds of thousands of dollars in donations yearly.

The court hearing for Thursday, December 14, was canceled. But the educators will have a press conference at the First Street Federal Courthouse 350 W. 1st Street at 4 pm.

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- **Citation (apa Style)**
  Marquez, A. (2023, December 12). Chicana Educators Are Being Sued for Including Arab and Palestinian Lessons In Their Ethnic Studies Curriculum. *L.A. TACO (CA).* Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/195E3571D16A9670.